

December 28, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 11184
(NINTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain Class 3 materials in DOT Specification 105J300W tank cars with a safety relief device rated at 25 percent of the tank test pressure. This special permit provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.203(a); 173.31(c)(1); 179.101-1.
5. BASIS: This special permit is based on Rohm and Haas Company's application dated February 8, 2005 submitted in accordance with § 107.109.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/Division	Identification Number	Packing Group
Acrylonitrile, stabilized	3	UN1093	I
Butyl acrylates, stabilized	3	UN2348	III
n-Butyl methacrylate, stabilized	3	UN2227	III
Ethyl acrylate, stabilized	3	UN1917	II
Isobutyl methacrylate, stabilized	3	UN2283	III
Methyl acrylate, stabilized	3	UN1919	II
Methyl methacrylate monomer, stabilized	3	UN1247	II
Styrene monomer, stabilized	3	UN2055	III
Vinyl acetate, stabilized	3	UN1301	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Each tank car must conform to the specifications for a DOT Specification 105J300W, except that the relieving capacity of the safety relief valve must be sized according to Appendix A paragraph A8.03 of the Association of American Railroads' Specification for Tank Cars (1992) having a latent heat of gas at flowing conditions (1) calculated at 75 psig.

b. TESTING - Each tank and safety relief valve operating under the terms of this special permit must have a periodic inspection and test according to the following schedule:

Retest interval years		Retest pressure - p.s.i.		
Tank and interior heater system	Safety relief valve	Tank	Safety relief valve	
			Start to discharge	Vapor Tight
10	10	300	75	60

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. The shipping paper notation requirements of § 172.203(a) are waived.

d. MARKING -

(1) Each tank car operating under the terms of this special permit must be marked "DOT-SP 11184" in four inch letters and numbers on a contrasting background above the DOT specification number.

(2) The marking requirements on the tank car for the safety relief valve must indicate that the safety relief valve set-to-discharge pressure is 75 psig and that the inspection and test due date for the safety relief valve is every 10 years.

e. Packagings permanently marked 'DOT-E 11184', prior to October 1, 2007 may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packagings marked on or after October 1, 2007 must be marked 'DOT-SP 11184'.

9. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.

10. MODAL REQUIREMENTS: Rohm and Haas must notify the Federal Railroad Administration if, upon discovery, any unusual incident occurs, such as derailment or tank car damage, during transportation by contacting:

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Federal Railroad Administration
Office of Safety Assurance and Compliance
RRS-12, Mail Stop 25
1120 Vermont Avenue, N.W.
Washington, D.C. 20005
(202) 493-6247 or 493-6229

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8 who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

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12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: sln